

Record of Offences	2%	2%	2%	2%
Receipt of Public Assistance	1%	2%	2%	2%
No Grounds	1%	2%	2%	2%

Table 5: HRTO Performance Measures

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Hearings and Mediation	2020-2021 % of time standard is met	2019-2020 % of time standard is met	2018-2019 % of time standard is met	2017-2018 % of time standard is met
First mediation date offered within 150 days of the date parties agree to mediation	26%	27%	62%	84%
First hearing date offered within 180 days of the date the application is ready to proceed to hearing	11%	7%	35%	38%
Decisions for hearings which take 3 days or less will be issued within 90 days	42%	76%	76%	81%
Decisions for hearings which take longer than 3 days, will be issued within 180 days	27%	50%	29%	33%

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Landlord and Tenant Board

The Landlord and Tenant Board (LTB) resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives.

The LTB's authority and jurisdiction are derived from the *Residential Tenancies Act, 2006* (RTA) and the *Statutory Powers Procedure Act*. The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the RTA.

In July 2020, the Ontario Legislature made a number of amendments to the RTA and one of its regulations. These changes required changes to the LTB's rules and procedures, including creating new or amending existing LTB forms, brochures, practice directions and interpretation guidelines.

Operational Highlights

The LTB implemented several initiatives in 2020-2021 to streamline its processes and address critical challenges.

On March 19, 2020, the Ontario Superior Court issued an order suspending evictions. The LTB suspended hearings related to eviction applications unless the matter related to an urgent issue such as an illegal act or a serious impairment of safety and pivoted to conducting these hearings by telephone and in writing.

When hearings for eviction applications resumed on August 1, 2020, the LTB implemented a videoconference hearing model, amended all of its processes and established the necessary infrastructure.

To support these initiatives, the LTB is committed to ongoing engagement with stakeholders to solicit feedback and input. Since August 2020, the LTB has been meeting regularly with stakeholders on changes to rules and processes, in accordance with Tribunals Ontario Consultation Policy. The LTB has also received written submissions in response to two rounds of stakeholder engagement on Bill 184 Protecting Tenants and Strengthening Community Housing Act.

To support timely and responsive service, the LTB has focused on building up its adjudicator complement and now has

more adjudicators than ever before. As of March 31, 2021, there were 37 full time adjudicators and 39 part time adjudicators.

Statistics

Table 1: LTB Applications

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Application	2020-2021	2019-2020	2018-2019
Applications Received*	48,422	80,874	82,095
Applications Resolved**	35,983	72,064	79,476
Active Cases at Year-End***	34,731	22,803	14,726

Notes:

* The totals do not include non-profit co-operative housing eviction applications.

** In 2020-2021 the majority of applications were resolved at hearing (ordered by hearing contested or uncontested, or ordered by review) – 40%, through mediation (mediated or ordered by hearing mediated) – 14%, and through withdrawals – 30%.

*** In a small number of cases, “resolved” applications are re-opened in the case management system (e.g., when the LTB grants a request for review or an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus “applications received,” less the “applications resolved.”

Table 2: Landlord Applications Received by Type

Table 2: Landlord Applications Received by Type

Case Type	Application Type	2020-2021	2019-2020	2018-2019	2017-2018
A1	Determine whether the act applies	96	102	126	96
A2	Sublet or assignment	383	491	378	332
A3	Combined application (usually includes an L1)	1,065	2,986	3,362	3,878
A4	Vary rent reduction amount	109	86	173	220
L1	Terminate & evict for non-payment of rent	24,481	44,621	46,043	47,595
L2	Terminate for other reasons and evict	11,031	15,732	13,945	11,404
L3	Termination – tenant gave notice or agreed	1,391	1,877	1,711	1,622
L4	Terminate the tenancy – failed settlement	1,551	5,156	5,571	5,552
L5	Rent increase above the guideline	404	758	717	559
L6	Review of provincial work order	1	1	4	5
L7	Transfer tenant to care home	6	1	5	1
L8	Tenant changed locks	25	41	39	29
L9	Application to collect rent	1,104	900	1,394	1,218

Total	41,647	72,752	73,738	72,511
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Table 3: Tenant Applications Received by Type

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Case Type	Application Description	2020-2021	2019-2020	2018-2019	2017-2018
A1	Determine whether the act applies	64	85	116	91
A2	Sublet or assignment	74	62	66	57
A3	Combined application	583	1,610	1,780	1,798
A4	Vary rent reduction amount	1	0	1	2
T1	Rent rebate (e.g., illegal rent)	718	884	863	765
T2	Tenant rights	3,145	3,072	3,053	2,832
T3	Rent reduction	68	78	148	71
T4	Failed rent increase above guideline	4	4	1	3
T5	Bad faith notice of termination	316	408	355	295
T6	Maintenance	1,795	1,914	1,970	1,818
T7	Suite meters	7	5	4	6
Total		6,775	8,122	8,357	7,738

Table 4: Co-Op Applications Received by Type

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Case Type	Application Description	2020-2021	2019-2020	2018-2019	2017-2018
C1	Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes	88	217	251	247
C1/2	Combined C1 and C2 applications	32	116	118	114
C2	Application to end the occupancy of the member unit and evict the member	73	141	107	86
C3	Application to end the occupancy and evict the member – based on the member's consent or notice	3	3	6	6
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/ order	22	91	81	89
Total		218	568	563	542

Table 5: Call Centre

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Calls	2020-2021	2019-2020	2018-2019	2017-2018
Calls handled	197,927	201,871	242,892	272,719
Average time per call	5:03	4:37	4:48	4:57
Average wait time in the queue	15:57	17:36	15:18	9:04

Table 6: LTB Performance MeasuresTable 6: LTB Performance Measures

Performance Measure	2020-2021*	2019-2020	2018-2019
L1 and L9 applications will be scheduled for a hearing within 25 business days	1% (131.7 days)	15% (45.6 days)	35% (31.8 days)
Decisions (Orders) for L1 and L9 applications will be issued within 4 business days at the conclusion of the final hearing	21% (22.4 days)	58% (5.8 days)	70% (4.6 days)
All other <u>L</u> TB applications (excluding L5 and A4) will be scheduled for a hearing within 30 business days	16% (108 days)	16% (52.7 days)	37% (36.7 days)
Decisions (Orders) for all other <u>L</u> TB applications (excluding L5 and A4) will be issued within 10 business days at the conclusion of the final hearing	60% (28.8 days)	71% (11.7 days)	79% (9.5 days)

Note:

*LTB suspended most hearings related to eviction applications during the early months of the COVID-19 pandemic resulting in delays in the scheduling of hearings. Further, COVID-19 halted in-person hearings resulting in a transition period until a videoconferencing model was established for proceedings. LTB made a number of changes to address delays including establishing a process for an expedited hearing, updating a scheduling plan, and actively engaging in the recruitment of adjudicators to assist with the caseload volume.

Table 7: Requests for Reviews

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Requests	2020-2021	2019-2020
Total number of requests for review	1,370	3,238
Denied requests for review	260	833
Requests for review sent to hearing	1,110	2,405

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Licence Appeal Tribunal

The Licence Appeal Tribunal (LAT) adjudicates applications and resolves disputes concerning compensation claims and licensing activities regulated by the provincial government, including the activities of delegated administrative authorities. The LAT is currently comprised of two main divisions: General Service (LAT-GS) and Automobile Accident Benefits Service (LAT-AABS).

LAT's jurisdiction and authority are derived from the following: